

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

AENEAS EXPORTING LLC, *Complainant*

v.

HONEYBEE INTERNATIONAL INC., AND ALL AMERICA
SHIPPING, *Respondent*.

DOCKET NO. 22-11

Served: August 18, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER REJECTING FILINGS AND REQUIRING DISCOVERY RESPONSES

Complainant has filed a number of discovery related requests on July 30, 2022; July 31, 2022; August 2, 2022; and, August 15, 2022. Counsel for Respondents has been properly copied on these requests.

On August 5, 2022, the following email was sent from the Office of Administrative Law Judges (“OALJ”) to Complainant, with opposing counsel copied:

The Judge is hereby rejecting the filings emailed by Anis Houssein on July 30, July 31, and August 2 consisting of requests for subpoenas and production of documents. Discovery between the parties does not require a subpoena or the Judge’s approval. Rather, pursuant to the Initial Order, the parties should exchange discovery requests between themselves. Discovery documents only need to be filed if they are being used in the proceeding, for example in the appendix that will accompany the brief arguing the merits of the case. In addition, the parties should consult with each other to schedule depositions and to resolve any discovery issues prior to requesting assistance from the Judge. See 46 C.F.R. 502.141(h). There may be times when a subpoena is appropriate, so the requests are denied without prejudice.

Moving forward, please include the docket number in the subject line of all emails. Any requests and discussion or arguments should be included in a motion and not in the text of an email. A brief statement acknowledging receipt of this email would be greatly appreciated.

On August 5, 2022, Complainant acknowledged receipt of the email from OALJ. However, on August 15, 2022, Complainant filed a motion to compel a witness to answer written interrogatories and a motion for appointment of an expert.

Pursuant to the scheduling order requested by the parties, August 22, 2022, is the last day to serve motions to join other parties, to amend the pleadings, or other preliminary matters; and, to disclose expert witnesses and their reports. Discovery is scheduled to be completed by September 22, 2022.

It is clear that the unrepresented, or *pro se*, Complainant is attempting to obtain discovery. It is not clear what discovery has been exchanged between the parties to date. Complainant should review the Initial Order issued in this proceeding as well as the Commission's Rules of Practice and Procedure for private complaints, set forth at 46 CFR Part 502 (<https://www.ecfr.gov/current/title-46/chapter-IV/subchapter-A/part-502>), particularly the provisions under Subpart A, Subpart E, Subpart I, and Subpart J. For example, the Commission does not appoint, provide, or pay for expert witnesses. Complainant may obtain its own legal counsel for assistance with this proceeding.

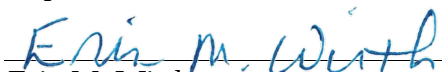
The August 15, 2022, filings from Complainant are rejected, similar to the rejection of the filings emailed by Complainant on July 30, July 31, and August 2. However, Respondents are hereby ordered to respond to the rejected discovery requests filed by Complainant. If discovery requests are not appropriate for Respondents, for example, if they request information from a non-party, Respondents shall explain to Complainant why they cannot respond. The discovery responses should be provided directly to Complainant by September 15, 2022.

Also on September 15, 2022, the parties should file a joint status report. The parties should indicate the status of discovery, including which requests have been sent and which requests have been answered. The parties should also state whether they have exchanged settlement offers but they should not state the content or amount of any settlement offers.

Complainant is also encouraged to review the proceedings that are available in the Commission's reading room (<https://www2.fmc.gov/readingroom>). Complainant should note that fraud and coercion are not claims that are available under the Shipping Act. To establish a section 41102(c) claim, 46 C.F.R. § 545.4 requires a complainant to show: (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis; (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property; (d) The practice or regulation is unjust or unreasonable; and (e) The practice or regulation is the proximate cause of the claimed loss. Discovery requests should be relevant to the claims raised in the complaint.

The parties are reminded that they have a duty to confer with each other prior to filing any motions. All motions filed should indicate that the party has conferred with the opposing party. Filings that do not comply with this provision may be rejected.

For the reasons discussed above, it is hereby **ORDERED** that the Complainant's filings on July 30, 2022; July 31, 2022; August 2, 2022; and, August 15, 2022, be **REJECTED WITHOUT PREJUDICE**; that Respondents respond to all discovery requests by September 15, 2022; and that the parties file a joint status report on September 15, 2022.


Erin M. Wirth
Chief Administrative Law Judge